

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 615

BY JUDICIARY, RULES AND ADMINISTRATION COMMITTEE

AN ACT

RELATING TO DISTURBING THE PEACE; AMENDING SECTION 18-6409, IDAHO CODE,
TO REVISE PROVISIONS REGARDING DISTURBING THE PEACE; AND DECLARING AN
EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 18-6409, Idaho Code, be, and the same is hereby
amended to read as follows:

18-6409. DISTURBING THE PEACE. (1) Every person who maliciously and
willfully disturbs the peace or quiet of any religious gathering, house of
worship, neighborhood, family, or person, by loud or unusual noise, or by
tumultuous or offensive conduct, ~~or by threatening, traducing, quarreling,~~
challenging to fight or fighting, or fires by firing any gun or pistol, ~~or~~
~~uses any vulgar, profane or indecent language within the presence or hearing~~
~~of children, in a loud and boisterous manner,~~ is guilty of a misdemeanor.

(2) Every person who maliciously and willfully disturbs the dignity or
reverential nature of any funeral, memorial service, funeral procession,
burial ceremony or viewing of a deceased person is guilty of a misdemeanor.

SECTION 2. An emergency existing therefor, which emergency is hereby
declared to exist, this act shall be in full force and effect on and after
July 1, 2026.